

It should be noted, however, that this definition is merely an allowable, not a mandatory, one. It is said that doubts should be resolved in favor of municipal liability because private remedies against officers for illegal searches and seizures are conspicuously ineffective,⁴⁸ and because municipal liability will not only afford plaintiffs responsible defendants but cause those defendants to eradicate abuses that exist at the police level.⁴⁹ We do not reach those policy considerations. Nor do we reach the constitutional question whether Congress has the power to make municipalities liable for acts of its officers that violate the civil rights of individuals.

The response of the Congress to the proposal to make municipalities liable for certain actions being brought within federal purview by the Act of April 20, 1871, was so antagonistic that we cannot believe that the word "person" was used in this particular Act to include them.⁵⁰

provision defining "person" (1 U. S. C. § 1) does not in terms apply to bodies politic. See Reviser's Note, Vol. I, Rev. U. S. Stats. 1872, p. 19.

⁴⁸ See note, 100 U. of Pa. L. Rev. 1182, 1206-1212.

⁴⁹ See Foote, Tort Remedies for Police Violations of Individual Rights, 39 Minn. L. Rev. 493, 514. Cf. Fuller & Casner, Municipal Tort Liability in Operation, 54 Harv. L. Rev. 437, 459.

⁵⁰ This has been the view of the lower federal courts. *Charlton v. City of Hialeah*, 188 F. 2d 421, 423; *Hewitt v. City of Jacksonville*, 188 F. 2d 423, 424; *Cobb v. City of Malden*, 202 F. 2d 701, 703; *Agnew v. City of Compton*, 239 F. 2d 226, 230; *Cuiksa v. City of Mansfield*, 250 F. 2d 700, 703-704. In a few cases in which equitable relief has been sought, a municipality has been named, along with city officials, as defendant where violations of 42 U. S. C. § 1983 were alleged. See, e. g., *Douglas v. City of Jeannette*, 319 U. S. 157; *Holmes v. City of Atlanta*, 350 U. S. 879. The question dealt with in our opinion was not raised in those cases, either by the parties or by the Court. Since we hold that a municipal corporation is not a "person" within the meaning of § 1983, no inference to the contrary can any longer be drawn from those cases.